



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

DOT-E 8551
(THIRD REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

MAY 31 1988

1. Parkem Industrial Services, Inc., Gonzales, Louisiana is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer for transportation the hazardous materials described in paragraph 3 below in certain non-DOT specification cargo tanks described in paragraph 7 below in commerce subject to the requirements specified herein. This exemption authorizes use of a non-DOT specification cargo tank, and provides no relief from any regulation other than specifically stated.

2. BASIS. This exemption is based on Streamline Manufacturing, Inc.'s January 9, 1987 application and Parkem Industrial Service, Inc.'s March 18, 1988 application submitted in accordance with 49 CFR 107.103 and 107.105, respectively, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquid and semi-solid waste material, including mixtures, compatible with the packaging, containing flammable liquids or corrosives or poison B materials, or combinations thereof, classed as flammable liquid, corrosive material or poison B as appropriate.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific commodity name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119(a) and (m), 173.245(a), 173.346(a), 178.340-7, 178.342-5, 178.343-5.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification cargo tank designed and constructed in full compliance with DOT Specification MC-307 or MC-312 (49 CFR 178.340, 178.342, 178.343) except as follows: (After December 31, 1981, no new construction is authorized for tanks not complying with this paragraph).

a. The cargo tank must be designed, built, and certified in accordance with Section VIII of the ASME Code to a minimum design pressure as follows and must be stamped for both internal and external pressure ratings:

<u>Design Pressure (psig)</u>			
<u>Basic Cargo Tank</u>	<u>Internal</u>	<u>External</u>	<u>Minimum Test</u>
<u>Specification</u>	<u>(See Note 1)</u>	<u>(See Note 2)</u>	<u>Pressure (psig)</u>
MC 307	25	15	37.5
MC 312	25	15	37.5

Note 1: The design pressure must be at least equal to the maximum pressure used for unloading.

EXPIRED - NOT ACTIVE

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Note 2: Vacuum tanks must have an external design pressure of at least 15 psi.

b. Circumferential reinforcement must comply with 49 CFR 178.340-7 except the maximum unreinforced portion of the shell may exceed 60-inches provided thickness and tensile strength of the shell material in combination with the frame and circumferential reinforcement produces structural integrity at least equal to that prescribed in 49 CFR 178.340-4(b).

c. In place of internal valves prescribed in 49 CFR 178.342-5(a) and 178.343-5(b), each tank may be equipped with one 6-inch maximum diameter bottom outlet with gate, plug or butterfly valve and one optional 4-inch maximum diameter bottom inlet with gate, plug or butterfly valve located near the rear of tank in accordance with Streamline Manufacturing, Inc.'s Drawing 801903 dated December 10, 1979, on file with the Office of Hazardous Materials Transportation (OHMT). Each bottom outlet and each bottom inlet must be equipped with an additional shut-off valve, or a blank flange or a sealing cap.

d. The metal identification plate and the manufacturer's certificate must not be marked to indicate compliance with DOT MC-307 or MC-312 specifications but instead must bear reference to "DOT-E 8551".

e. Tanks that are to be used in transporting flammable waste materials must be equipped with a spring loaded relief valve.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each cargo tank must be reinspected and retested once every two years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC-307 or MC 312 cargo tanks, as appropriate, at one and one-half times the design pressure.

c. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 8551."

d. The Manufacturer's Data Report for the first cargo tank fabricated must be submitted to the OHMT prior to initial shipment.

e. Cargo tanks complying with paragraph 7 above may be loaded with any waste material listed in paragraph 3 of the exemption.

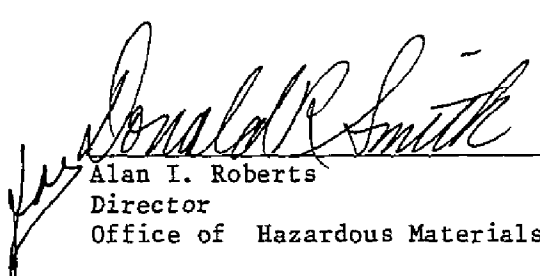
f. Cargo tanks, not in compliance with paragraph 7 above, built before December 31, 1981 in accordance with the original issue of this exemption may continue in use for transporting all hazardous waste materials other than "Poison B". The following is pertinent to these cargo tanks:

- (1) No new construction is authorized after December 31, 1981.
- (2) The locking mechanism on tanks with the full open rear head dump feature must be designed with a safety factor of 4 times the tank design pressure based on the ultimate strength of the tank material.
- (3) Each tank with the rear head dump feature must be visually inspected prior to and after each refill for signs of deterioration or failure of closing mechanism. Inspections must be made every six months and inspections records maintained on file.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or cargo tank rollover must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. January 1, 1990.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

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(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA.